

26TRCV01271 26TRCV01271

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26TRCV01271 Hearing Date: September 21, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

CRAIG

BROWN

Plaintiffs,

Case No.:

26TRCV01271

vs.

[Tentative]

Sustained

HAAGEN

COMPANY LLC; HCL

INGLEWOOD

VILLAGE LLC; and DOES 1 to 30,

Defendants.

Hearing

Date: September
21, 2026

Moving Parties: Defendants Haagen Company LLC and HCL
Inglewood Village

Responding Party: N/A

HEARING: Demurrer

The Court considered the moving
papers.

RULING

The Court sustains the Demurrer with leave to amend.

BACKGROUND

On April 8, 2026, Plaintiff Craig
Brown filed the Complaint against Defendants Haagen Company LLC and HCL
Inglewood Village, alleging causes of action for negligence and premises
liability.

On August 4, 2026, Defendants Haagen
Company LLC and HCL Inglewood Village filed the Demurrer.

No Opposition has been filed.

LEGAL STANDARD

A demurrer can be
used only to challenge defects that appear on the face of the pleading under
attack or from matters outside the pleading that are judicially noticeable. (Blank
v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint
need only allege facts sufficient to state a cause of action; each evidentiary
fact that might eventually form part of the plaintiff's proof need not be

alleged.” (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

On July 22, 2026, Defendant sent a meet and confer letter to Plaintiff regarding the instant demurrer. The Court finds that this satisfies the meet-and-confer requirement.

Causes

of action 1 and 2 – Negligence and Premises Liability.

The

elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) Those who own, possess, or control property

generally have a duty to exercise ordinary care in managing the property to avoid exposing others to an unreasonable risk of harm. (*Annock v. Peterson Enterprises, LLC* (2014) 232 Cal.App.4th 32, 37.) The existence and scope of duty are legal questions for the court. (*Id.* at p. 36.)

If there is a condition that poses a danger to customers and others on the premises, the property owner is “under a duty to exercise ordinary care either to make the condition reasonably safe for their use or to give a warning adequate to enable them to avoid the harm.” (*Bridgman v. Safeway Stores, Inc.* (1960) 53 Cal.2d 443, 446.)

Defendants

argue that Plaintiff's Complaint fails to allege facts sufficient to state a cause of action against Defendant Haagen or Defendant HCL Inglewood for general negligence or premises liability. Defendants contend that the Complaint's allegations are so sparse that they cannot support a claim against Defendant Haagen or Defendant HCL Inglewood. Defendants argue that the Complaint only alleges that Plaintiff fell on the subject property and that Defendant Haagen and Defendant HCL Inglewood are therefore liable, which Defendant maintains supplies no meaningful factual detail. Defendants emphasize that the Complaint does not state how or on what Plaintiff allegedly tripped, slipped, or fell, does not identify where on the subject property the incident occurred, and does not allege that Defendant Haagen or Defendant HCL Inglewood failed to undertake any particular maintenance or repair measure.

“A cause of action

may be stated in which negligence is alleged in general terms, without detailing the specific manner in which the injury occurred.” (*Guilliams v. Hollywood Hospital* (1941) 18 Cal.2d 97, 101.) However, a plaintiff may not “recover upon the bare statement that the defendant's negligence has caused him injury.” (*Ibid.*)

Here, the Complaint

alleges that Plaintiff tripped and fell at 3470 W Century Boulevard, Inglewood, CA. However, the Complaint fails to state what caused the fall or what negligent acts Defendants took.

Therefore, the Court

sustains the Demurrer with leave to amend.